

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

July 14, 2008

The Governing Body of the City of Cheyenne met in regular session on this date at 6:00 p.m. in Council Chambers. Present were: MAYOR-Jack R. Spiker; COUNCIL MEMBERS-Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Laybourn, Dr. Rinne, Mr. Segrave and Mr. Valdez. Absent: Mr. Pierson.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Claudia Angelos, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests, in which event the item will be removed from the Consent Agenda and considered in its normal sequence on the agenda.) Upon request by Mr. Laybourn, Mayor Spiker announced agenda items #12, 19(a)(b)(c)(d)(e), 20(a)(b) and 21(b) would be removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mr. Laybourn voting "no".

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON JUNE 23, 2008. Motion (per consent agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON JULY 7, 2008. Motion (per consent agenda) carried.

Mr. Segrave moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Upon inquiry, City Treasurer Barb Dorr reviewed information available on vouchers payable to: Desert Mountain Corp. (\$18,276.59), road saver material (a/k/a ice slicer); Janisan (\$934.00), smoker stations (6) for Golf Division; Knife River (\$117,147.07), concrete work, ADA corners, alley approach and granite, and Adam Martin (\$200.00), Plaza event security. Discussion followed on the project work area involving services by Knife River; Plaza event security services; voucher review procedures, and availability of staff to provide information on voucher expenditures. Main motion carried. Voting "yes" – all members of the governing body present with the exception of Ms. Case and Mr. Laybourn voting "no". Upon inquiry under other City business, Mike Abel, Public Works Director, stated he could obtain and provide information to Council members on whether the voucher payment to Knife River included services for work conducted on Thomes Ave.

Mayor Spiker opened a public hearing for the purpose of receiving comments and input to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exists for the property described as the W½ of Tract 10, Airport Valley Tracts, Laramie County, WY (aka 5905 Crow Road). Brandon Cammarata, Urban Planning office, reviewed requirements and compliance

of conditions contained in Wyo. Stat. §15-1-402, including specific information indicating compliance with Wyo. Stat. §15-1-402(a)(i) through (vi). There being no further comments or input and purpose of the hearing having been met, Mayor Spiker closed the hearing.

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, PARCELS OF LAND DESCRIBED AS TRACTS 2 AND 3, SKYLINE TRACTS; SYCAMORE RD. AND SKYLINE DR. ADJACENT TO SAID TRACTS 2 AND 3, A SUBDIVISION OF SECTION 18, T.14N., R.66W. OF THE 6TH P.M. LARAMIE COUNTY, WYOMING (LOCATED N. OF AND ADJACENT TO STOREY BLVD., E. AND W. OF SYCAMORE RD.).” Reporting for Public Services Committee, Mr. Collins moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body present. (#3817)

“AN ORDINANCE AMENDING SECTION 2.04.160(D)(6), READINGS-COMMITTEE REPORTS-AMENDMENTS, OF CHAPTER 2.04, MAYOR AND CITY COUNCIL, OF TITLE 2, ADMINISTRATION AND PERSONNEL, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING” – referred to Finance Committee (sponsor - Mr. Brown).

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, PARCELS OF LAND DESCRIBED AS A TRACT OF LAND SITUATED IN A PORTION OF THE NW¼ OF SECTION 8, AND A PORTION OF WALTERSCHEID BOULEVARD SITUATED IN A PORTION OF THE NE¼ OF SECTION 7 AND A PORTION OF THE NW¼ OF SECTION 8, T.13N., R.66W. OF THE 6TH P.M. AND A PORTION OF WEST JEFFERSON ROAD LYING BETWEEN THE WESTERLY RIGHT-OF-WAY LINE OF THE SOUTH GREELEY HIGHWAY AND THE WEST LINE OF TRACT 16 ALLISON TRACTS, LARAMIE COUNTY, WY (LOCATED S. OF AND ADJACENT TO FOX FARM RD. AND E. OF AND ADJACENT TO WALTERSCHEID BLVD.)” – referred to Public Services Committee (sponsor - Mr. Collins).

“A RESOLUTION AUTHORIZING SUBMISSION OF AN APPLICATION TO THE U.S. BUREAU OF JUSTICE ASSISTANCE FOR THE EDWARD BYRNE MEMORIAL GRANT PROGRAM TO BE USED TO PURCHASE DIGITAL CAMERAS AND EQUIPMENT FOR THE CHEYENNE POLICE DEPARTMENT.” Reporting for Finance Committee, Mr. Segrave moved to adopt in an amount not to exceed \$13,416.00, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body present. (#5051)

[CA] “A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR THE PROPERTY DESCRIBED AS THE W. 60' OF THE E. 120' OF THE S. 120' OF TRACT 336, SUNNYSIDE ADDITION, SEVENTH FILING, LARAMIE COUNTY, WY (AKA 3616 AND 3618 RAWLINS STREET)” – referred to Public Services Committee (sponsor - Mr. Collins).

[CA] “A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR THE PROPERTY DESCRIBED AS PUBLIC ROAD AND ALLEY RIGHT-OF-WAY BEING ANNEXED SITUATED IN THE NW¼ OF SECTION 27, T.14N, R.66W., 6TH P.M., LARAMIE COUNTY, WY (RIGHT-OF-WAY LOCATED N. OF PERSHING BLVD., S. OF DELL RANGE BLVD., E. OF GROVE DR., AND W. OF COLLEGE DR.)” – referred to Public Services Committee (sponsor - Mr. Collins).

[CA] “A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR THE PROPERTY DESCRIBED AS THE NORTHERLY PORTION OF LOT 1, BLOCK 1, INCLUSIVE OF THE 16’ UTILITY EASEMENT, ROGERS SUBDIVISION, AND LOTS 3 THROUGH 5, AND THE NORTHERLY HALF OF ADJACENT VACATED ALLEY, BLOCK 2, COULSON ADDITION, LARAMIE COUNTY, WY (LOCATED S. OF AND ADJACENT TO MESSENGER CT., W. OF MCCANN AVE.)” – referred to Public Services Committee (sponsor - Mr. Collins).

[CA] “A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR THE PROPERTY DESCRIBED AS LOT 16, BLOCK 1, DOWNEY ADDITION, LARAMIE COUNTY, WY (LOCATED NW. CORNER OF RIDGE RD. AND LAND CT.)” – referred to Public Services Committee (sponsor - Mr. Collins).

[CA] “A RESOLUTION TO SUPPORT AND ADOPT THE RECOMMENDATIONS OF THE CHEYENNE TRANSPORTATION SAFETY MANAGEMENT PLAN” – referred to Public Services Committee (sponsor - Mr. Brown).

[CA] “A RESOLUTION ACKNOWLEDGING RECEIPT OF AND SUPPORTING THE RECOMMENDATIONS OF THE EAST DELL RANGE/US 30 CORRIDOR STUDY, WHICH INCLUDES THE CHRISTENSEN RAILROAD OVERPASS PLAN” – referred to Public Services Committee (sponsor - Ms. Broyles).

LEASES/CONTRACTS/LEGAL:

Contract between the City of Cheyenne, Youth Alternatives, and the State of Wyoming, Department of Family Services, Division of Juvenile Services for diversion and transitional services. Mr. Segrave moved to approve, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body present. (#5275)

Contract between the City of Cheyenne, Recreation Division, and Josh Cossitt for professional tennis services. Mr. Segrave moved to approve, seconded by Mr. Valdez. Upon inquiry, Kari Kivisto, Asst. Director, Recreation, Aquatics, Ice and Events Division, advised the City will receive \$500.00 for the use of City facilities. Motion carried. Voting “yes” – all members of the governing body present. (#5276)

Contract Employment Agreement between the City of Cheyenne, Police Department, and Tina Henderson for crime victim assistance services. Mr. Segrave moved to approve an annual salary amount not to exceed \$34,248.88 plus benefits and any overtime compensation pursuant to the provisions of the agreement, seconded by Mr. Valdez. Mr. Segrave clarified that since Finance Committee met it had been brought to his attention that the agreement also provides for employment benefits and overtime compensation, therefore, the motion for this item, as well as the next two agenda items, reflects approval of the base salary plus benefits and any overtime compensation as outlined in the agreement. Motion carried. Voting “yes” – all members of the governing body present. (#5277)

Contract Employment Agreement between the City of Cheyenne, Police Department, and

Brenda Johnson for crime victim assistance services. Mr. Segrave moved to approve an annual salary amount not to exceed \$30,422.97 plus benefits and any overtime compensation pursuant to the provisions of the agreement, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body present. (#5278)

Contract Employment Agreement between the City of Cheyenne, Police Department, and Carole Anderson-Kincaid for crime victim assistance services. Mr. Segrave moved to approve an annual salary amount not to exceed \$24,881.08 plus benefits and any overtime compensation pursuant to the provisions of the agreement, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body present. (#5279)

[CA] Contract between the City of Cheyenne, Police Department, and Laramie County School District No. 1, for School Resource Officers for the 2008-2009 school year – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Frontier Mall Associates LP, and DBL Peripheral Properties LP, for Frontier Mall Drainage, addressing property detention requirements through participation in construction of a regional detention basin – referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

Contract Modification No. 3 to Contract No. 4607 between the City of Cheyenne, Sanitation Department, and A-1 Organics to provide resources and services for the public composting facility. Mr. Segrave moved to approve in an amount not to exceed \$189,312.80, seconded by Mr. Valdez. Upon inquiry, Dennis Pino, Solid Waste Director, provided information on monitoring of compost contents to meet nationally recognized standards. Motion carried. Voting “yes” – all members of the governing body present. (#4607)

Contract Modification No. 1 to Contract No. 4937 between the City of Cheyenne, Sanitation Department, and Clean Harbors for hazardous waste disposal services. Mr. Segrave moved to approve in an amount not to exceed \$200,000.00, seconded by Mr. Brown. Upon inquiry, Dennis Pino, Solid Waste Director, clarified hazardous waste includes such items as pesticides, paints, oils, cleaners and solvents, etc., but does not include electronic waste. He stated the department works closely with Laramie County as they have funding for a program that assists with disposing of hazardous waste products. Motion carried. Voting “yes” – all members of the governing body present. (#4937)

[CA] Contract Modification No. 1 to Contract No. 5108 between the City of Cheyenne, Parks & Recreation Dept., and Scotch Boy Landscaping, for irrigation and sod in Western Hills Park – referred to Finance Committee.

[CA] Contract Modification No. 2 to Contract No. 4968 between the City of Cheyenne, Engineering Dept., and the Wyoming Dept. of Transportation, to add a supplemental project review meeting and a public scoping meeting for reconstruction of W. Pershing Blvd. from I-25 to Pioneer Ave. (2003-2006 1% Sales Tax) – referred to Finance Committee.

CONSIDERATION OF BIDS:

Consideration of Bid #M-22-08 for a contract between the City of Cheyenne and Reiman Corp., for the Norris Viaduct Replacement Project (1% Specific Purpose Sales & Use Tax and Federal Grant funds). John Rogers, representing Scott Contracting, Inc., Henderson, CO, a bidder on the project, expressed concerns regarding recommendation for approval relative to selection of the lowest base bidder and staff proposal involving alternates. He provided a brief summary of bid differences as submitted by Scott Contracting and Reiman Corporation; discussed a 2002 Wyoming Supreme Court case; provided copies of a worksheet comparing bids between the two companies, with alternates, and explained Scott Contracting's reason for submitting an alternate concrete staining material other than what was specified in the bid document. He stated that although Reiman may have submitted the lowest base bid, Scott Contracting had the lowest overall bid when including the alternates. Barton Puryear, in-house staff counsel for Scott Contracting, advised their company's bid would provide savings to the City; reviewed bid criteria; indicated that several supplies and manpower would be obtained locally, and encouraged the bid be awarded to Scott Contracting. John Fafoutakis spoke in favor of Scott Contracting, Inc.'s bid due to overall cost savings and use of taxpayers' dollars. Gwendolyn Connell and Debbie Brennan spoke in favor of awarding the bid to a Wyoming company that will assist with the local economy. Mr. Rogers addressed the local contractor bid vs. out-of-state bid and explained as there is a substantial amount of Federal funding involved, the bid was conducted without consideration of the in-state bidder process. He referenced recent projects (Laramie County Library and St. Mary's School) involving out-of-state companies that have hired subcontractors locally and purchased supplies locally, as Scott Contracting would do. Mr. Segrave reported there was no recommendation on the item from Finance Committee. Ms. Broyles moved to accept the base bid from Reiman Corp., Cheyenne, with Alternatives #1, 3, 4, 5(b) and 6 in an amount not to exceed \$18,389,734.60, seconded by Mr. Valdez. Discussion included the following topics: Project as a high priority for the community; aesthetics and amenities involved with some of the proposed alternates; available funding and assistance from grants and 1% Specific Purpose sales tax; monetary assistance from Frontier Refining for Alternate #6; project eligibility for State Loan and Investment funding, and public meetings and input on the project and alternates desired. Upon inquiry, Barb Dorr, City Treasurer, provided information on 1% Specific Purpose sales tax collection amounts and current fund balance, grant monies received and estimated project funding shortage, and City Engineer Ken Lewis clarified funding for Alternate #6 would be provided by Frontier Refining in the amount of \$1.5 million dollars. Discussion continued on awarding the bid with alternates without having all of the funding in place, review of the proposed alternates and options for those involving aesthetics, building a basic efficient bridge structure, manpower to maintain landscaped areas, and bid document language and the bidding process. Upon inquiry, Mark Stark, Olsson and Associates, design team project manager, confirmed he had toured some past concrete projects in the community during the initial stages of the Norris Bridge project, and provided information on fees paid to Olsson and Associates for its project services. During comments concerning the quality of concrete involved in projects throughout the community, concrete standards, and life span of concrete, Mr. Brown raised a point of order questioning the relevancy of comments being made. Mayor Spiker ruled comments could continue. Upon inquiry, Rich Bolkovatz, chairman of the City's past committee that assisted with review and modification of the City's concrete specifications, advised modification recommendations to concrete specifications were agreed upon by local contractors serving on the committee. Discussion continued on City concrete specifications, condition of failing concrete and projected life span; review of bid

alternates and citizens' input in determining alternate proposals; bid document wording; awarding of bid based upon lowest base bid received; fiduciary responsibility to taxpayers; local and non-local bidders on projects; engineers project estimate; staff proposed alternates; importance of alternates involving traffic signalization and storm sewer work; alternates involving lighting and concrete staining; community beautification, park environment and aesthetics; voter support for the project; quality infrastructure, and project costs. Upon inquiry, City Attorney Claudia Angelos, advised the bid document could be followed by awarding the bid based upon the base amount and adding alternates to it. Motion failed. Voting "yes" – Ms. Broyles and Mr. Valdez. Voting "no" – Mr. Brown, Ms. Case, Mr. Collins, Mr. Laybourn, Dr. Rinne, Mr. Segrave and Mayor Spiker. Mr. Valdez moved to approve the base bid submitted by Reiman Corp. in the amount of \$16,858,928.17 with alternates #4 and #6 for a total bid amount of \$17,168,638.00 and request staff enter into value engineering discussions with the contractor, seconded by Ms. Broyles. Following a ten minute recess, Mayor Spiker reconvened the meeting at 8:00 p.m. Upon inquiry, Mr. Lewis clarified the total bid amount is \$17,168,638.00 including the two alternates (#4 and #6). Mr. Fafoutakis commented on one of the alternates (not included in the motion) that would provide for a park facility in relationship to its location, building roads and structures that will last, and using fiduciary judgment to award the bid to the lowest bidder. Upon query, Mr. Lewis advised that by adding alternates #4 and #6 to the lowest bid submitted, Reiman's bid would be the lowest by approximately \$103,000.00, and explained that "value engineering" means the contractor will look at more efficient means and less expensive materials to approach the same project to receive an equal and acceptable end product. He verified if, as a result of value engineering discussions, any contract modifications were determined to be presented they would come before the governing body for approval. Further discussion followed on project costs, funding, scenario of adding remaining alternates in the future, and engineering estimate affiliated with Alternate #6. In conjunction with the estimated time frame in which results of value engineering discussions could be provided, Mr. Lewis indicated information could possibly be provided within approximately 3 months, and advised certain additional alternates that may be considered as a result of value engineering discussions would have to be issued to the same contractor. Motion carried. Voting "yes" – all members of the governing body present with the exception of Ms. Case and Mr. Laybourn voting "no". (#5280)

Consideration of Bid #M-34-08 for a contract between the City of Cheyenne and STC Construction Co., Inc., for the FY 2008 Milling and Utility Adjustments Project (2003-2006 1% Sales Tax). Mr. Segrave moved to accept the bid submitted by STC Construction Co., Inc., Cheyenne, in an amount not to exceed \$134,925.00, seconded by Mr. Brown. Upon inquiry concerning whether any roads to be rehabilitated were located within Ward II, Ken Lewis, City Engineer, advised he could provide a list of project areas. Discussion followed on road project work and needs in the City's three different wards. Motion carried. Voting "yes" – all members of the governing body present with the exception of Dr. Rinne and Mr. Segrave voting "no". (#5281)

[CA] Consideration of Bid #R-1-09 for furnishing two new twin screw cab & chassis from Cheyenne Freightliner, for the Sanitation Dept. – referred to Finance Committee.

[CA] Consideration of Bid #R-2-09 for furnishing four solid waste transfer trailers from Ameri-Tech Equipment, for the Sanitation Dept. – referred to Finance Committee.

ANNOUNCEMENTS/REPORTS/MOTIONS:

Announcement was made that a Calcutta will be held July 26, 2008 beginning at 5:30 p.m.

at the Cheyenne Frontier Days VIP/Sponsor Tent located in Frontier Park in conjunction with the 2008 Cheyenne Frontier Days Rodeo. Proceeds to benefit Cheyenne area charities.

Announcement was made of the appointment of Richard Keslar to the Tourism Promotion Joint Powers Board, and Nancy Abraham to the Historic Preservation Board, to be confirmed July 28, 2008.

Announcement was made of the reappointment of Connie Sloan-Cathcart to the Public Transit Advisory Board, to be confirmed July 28, 2008.

OTHER CITY BUSINESS:

John Fafoutakis spoke generally on project cost over-runs, expressing his hope that this will not be an issue with the Norris Viaduct Replacement Project, and in favor of building basic, dependable construction projects and the need to repair roads.

Upon inquiry regarding whether residents are allowed access to fish at Lake Absarraca during Frontier Days, Rick Parish, Parks and Recreation Director, clarified persons wishing to fish during the Frontier Days event can have access and just need to identify their purpose with CFD security individuals at the Lake entrance.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:33 p.m.

Submitted by,

Carol A. Intlekofer, CMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
July 26, 2008